Higher National Diploma in Quantity Surveying

Second Year, Second Semester Examination – 2022

QS22032 – Contract Law II

Instructions for Candidates:
Answer **four** questions only.
All questions carry **equal** marks.

No. of Questions : 05
No. of Pages : 02
Time :Two hours

Question 01

1. What is the difference between an Offer & an Invitation to treat?
2. Briefly discuss the Mail Box Rule with **relevant case law**.
3. State **two instances** where a contract becomes frustrated.
4. What are the remedies available for a Breach of Contract?
5. What is meant by the term "**Exemption Clause**" in a contract?

(05 x 05 Marks = 25 Marks)

Question 02

1. What are the types of Construction Contracts? (List at least **five** types)
2. Explain **three** duties of an Owner and **two** duties of a Contractor.
3. What are the essential components of a Construction Contract?
4. What is Professional Negligence, and provide **two examples** of Professional Negligence in the Construction Industry.
5. State **four** procurement methods used in the context of the construction industry.

(05 x 05 Marks = 25 Marks)

Question 03

1. Identify the **sector** of each employee given below and briefly discuss the **applicable laws** for each employee:
   a) Sunil works as an Administrative Officer in the Department of Motor Traffic of the Uva Province.
   b) Kumari works as an Estate Laborer in Akalawatte Rubber Estate.
   c) Sampath works as a Junior Executive Officer at Sanasaviya Bank PLC.
   d) Leelavathi works as a maid in Silva's house.
   e) Rani works as a machine operator in the "Rajan Garment Factory".

2. What tests are available to identify the contract of service and contract for service?
3. Janaka, a mother of two children, working in "Colombo Textiles" gave birth to her third baby on 01st of May 2024. How many days is she entitled to for maternity leave?
4. Tharshan, Chief Accountant of Prabath Industries, has a last drawn salary of 75,000/- and has worked there for 20 years, retiring from services. Calculate Tharshan's gratuity payment.
5. What are the disputes settling methods introduced under the Industrial Disputes Act No 43 of 1950?

(05 x 05 Marks = 25 Marks)

Question 04

1. Name **two** International Contracts related to the construction industry and **briefly explain** them.
2. What is meant by **Arbitration**?
3. State **three** main responsibilities of a Quantity Surveyor in the Construction industry.
4. What is meant mean by the term '**Duty of Care**'?
5. What are the possible ways to terminate an International Contract?

(05 x 05 Marks = 25 Marks)

Question 05

Write short notes on any **FIVE** of the following.

1. Force Majeure
2. Negotiation
3. Trade union Actions
4. Turnkey Contracts
5. Invitation to treat
6. Workman & Independent Contractor

(05 x 05 Marks = 25 Marks)